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PART I

Acts, Ordinances, President's Orders and Regulations including Martial Law
Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW AND PARLIAMENTARY AFFAIRS

(Law Division)

Islamabad, the 10th July, 1980

No. F. 17 (1)80-Pub.—The following Ordinance made by the President is hereby published for general information :—

ORDINANCE No. XXXVI of 1980

AN

ORDINANCE

to amend the Dowry and Bridal Gifts (Restriction) Act, 1976

WHEREAS it is expedient to amend the Dowry and Bridal Gifts (Restriction) Act, 1976 (XLIII of 1976), for the purposes hereinafter appearing ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (CMLA Order No. 1 of 1977), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. **Short title and commencement.**— (1) This Ordinance may be called the Dowry and Bridal Gifts (Restriction) (Amendment) Ordinance, 1980.

(2) It shall come into force at once.

2. **Amendment of section 3, Act XLIII of 1976.**—In the Dowry and Bridal Gifts (Restriction) Act, 1976 (XLIII of 1976), hereinafter referred to as the said Act, in section 3,—

(a) after sub-section (1), the following new sub-section shall be inserted, namely :—

“(1A) No person shall give or accept, or enter into an agreement to give or to accept dowry, bridal gifts or presents of a value exceeding the aggregate value specified in sub-section (1).” : and

(411)

Price : Ps. 9

(b) for sub-section (2) the following shall be substituted, namely :—

“(2) No dowry, bridal gifts or presents may be given before six months or after one month of *nikah* and, if *rukhsati* takes place some time after *nikah* after one month of such *rukhsati* .

3. **Omission of section 7, Act XLIII of 1976.**—In the said Act, section 7 shall be omitted.

4. **Substitution of section 8, Act XLIII of 1976.**—In the said Act, for section 8 the following shall be substituted, namely :—

“8. *Declaration regarding expenditure to be submitted to Registrar.*—(1) The father of the bridegroom or any other person who arranges the marriage shall, within fifteen days of the expiry of the period fixed under sub-section (2) of section 3 for giving dowry, bridal gifts and presents, submit a declaration to the Registrar solemnly affirming that the total expenditure on the marriage including dowry, bridal gifts, presents and entertainments did not exceed the limits laid down in this Act

(2) The Registrar shall forward the declaration submitted under sub-section (1) to the Deputy Commissioner within fifteen days of receipt of such declaration.

8A *Complaints against violation of the Act.*—If any person attending a marriage ceremony is satisfied that the provisions of this Act or the rules made thereunder have been contravened in respect of such ceremony, he may submit a complaint, giving full particulars of the contravention, to the Deputy Commissioner.”

5. **Amendment of section 9, Act XLIII of 1976.**—In the said Act, in section 9,—

(a) in sub-section (1), for the words “which may extend to ten thousand rupees” the words “which shall not be less than the amount proved to have been spent in excess of the maximum limits laid down in this Act” shall be substituted ; and

(b) in sub-section (3), for the word “nine” the word “three” shall be substituted.

6. **Substitution of section 10, Act XLIII of 1976.**—In the said Act, for section 10 the following shall be substituted, namely :—

“10. *Power to make rules.*—The Federal Government, in respect of the Islamabad Capital Territory, and a Provincial Government, in respect of the Province, may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.”

GENERAL,
M. ZIA-UL-HAQ,
President.

S. A. NUSRAT,
Secretary.